

IN THE COURT OF COMMON PLEAS OF FRANKLIN COUNTY, OHIO
DIVISION OF DOMESTIC RELATIONS AND JUVENILE BRANCH

LAMONT EVANS,

PLAINTIFF,

v.

TALICIA TOWNSEND

DEFENDANT.

CASE NO. 12 JU 9451

JUDGE PREISSE

MAGISTRATE REEDUS

JUDGMENT ENTRY

Pursuant to Ohio Rules of Civil Procedure / Ohio Rules of Juvenile Procedure, the Court has by specific and/or general order of reference directed that this cause be referred to a magistrate, which magistrate has the powers specified in said Ohio Civil Rules / Ohio Juvenile Rules.

This matter came before the Court on December 17, 2015, upon Plaintiff's motion for shared parenting filed July 22, 2015. Plaintiff and Defendant appeared without counsel and elected to proceed.

The magistrate has filed a decision in this matter with the Clerk of Courts on see time stamp, and copies thereof were mailed to the parties and/or their attorneys of record. The Court adopts the magistrate's decision and approves same, unless specifically modified or vacated, and enters the same as a matter of record, and includes same as the Court's judgment herein. The Court further finds there is no error of law or other defect on the face of the magistrate's decision. The Court incorporates by reference the attached magistrate's decision and makes same the judgment of this Court.

(Check if applicable)

- ☐ Pursuant to Ohio Rule of Civil Procedure 53(D)(4)(e)(ii) / Juvenile Procedure 40(D)(4)(e)(ii) the Court finds immediate relief is justified. Should a party file timely objections to the magistrate's decision, this order shall serve as an interim order, and shall not be subject to the automatic stay caused by the filing of said objections.

SIGNATURE PAGE ATTACHED

JUDGE PREISSE

Pursuant to Civil Rule 58(B), you are hereby instructed to serve upon all parties not in default for failure to appear, notice of the judgment and its date of entry upon the journal.

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JUDGE PREISSE

TALICIA TOWNSEND

MAGISTRATE REEDUS

DEFENDANT.

MAGISTRATE'S DECISION

This cause came before the Magistrate for hearing on December 17, 2015 upon Plaintiff's motion for shared parenting filed July 22, 2015. Both parties appeared without counsel and elected to proceed. The parties reached an agreement for shared parenting and submitted a joint shared parenting plan and a shared parenting decree on January 11, 2016. The only issue before the Magistrate is the amount of child support to be paid by the Plaintiff. The parties submitted joint exhibit 1 which is incorporated herein by reference. Joint exhibit 1 is a child support worksheet that represents the guideline child support. Both parties agree that the guideline amount is unjust, inappropriate, and not in the best interest of the minor children. The Magistrate took testimony from both parties and reviewed the shared parenting plan when considering the deviation factors outlined in Ohio Revised Code section 3119.23. The Magistrate also heard testimony with respect to the appropriate allocation of the dependency exemption.

The Magistrate would note that Plaintiff is significantly in arrears on his child support and did not show remorse or concern with respect to his violation of the current

court order. Plaintiff testified that he believes he should "pay the arrears as I can."

Plaintiff's last payment was "about \$50.00" in September 2015.

The Magistrate finds Plaintiff will not voluntarily assist Defendant financially if there are financial needs such as school clothes, school lunches, school fees, etc. Therefore, although the parents have an almost equal parenting time schedule and similar incomes, the Magistrate will order Plaintiff to pay a small amount of ongoing child support.

Findings of Fact and Conclusions of Law pursuant to Juvenile Rule 40(D)(3) were not requested. An audio recording of the proceedings was made.

Therefore, having considered the agreement of the parties, the evidence and the appropriate law, it is the decision of the Magistrate that the following orders shall issue:

1. Child Support and Cash Medical Support Orders:

a. The Magistrate hereby modifies the Plaintiff's child support order to \$100.00 per month effective July 22, 2015. (See Joint exhibit 1). Mother currently has private health insurance for the minor children.

b. During any time on or after July 22, 2015 that private health insurance is not in effect, the following orders shall apply:

i. Plaintiff, Lamont Evans shall pay child support of \$100.00 per month plus processing charge, which is a deviation from the guideline amount of \$499.48 per month, plus processing, which would be unjust, inappropriate, and not in the best interest of the children given the substantial parenting time of Plaintiff and his in kind contributions, and \$113.75 per month in cash medical support plus processing charge, pursuant to the child support worksheet attached and incorporated herein as Joint Ex. 1.

c. During any time on or after the effective date of this order that private health insurance is in effect, the following orders shall apply:

- i. Plaintiff Lamont Evans shall pay child support of \$100.00 per month plus processing charge, which is a deviation from the guideline amount of \$638.18 per month, plus processing, which would be unjust, inappropriate, and not in the best interest of the children given the incomes of the parties and the in kind contributions of each parent. (see joint ex. 1);

d. It is further ordered:

If the obligor is ordered to pay cash medical support under this support order, the obligor shall begin payment of any cash medical support on the first day of the month immediately following the month in which private health insurance coverage is unavailable or terminates and shall cease payment on the last day of the month immediately preceding the month in which private health insurance coverage begins or resumes. During the period when cash medical support is required to be paid, the obligor or obligee must immediately inform the child support enforcement agency that health insurance coverage for the children has become available.

The amount of cash medical support paid by the obligor shall be paid during any period after the court or child support enforcement agency issues or modifies the order in which the children are not covered by private health insurance.

Any cash medical support paid pursuant to R.C. 3119.30 (C) shall be paid by the obligor to either the obligee if the children are not Medicaid recipients, or to the office of child support to defray the cost of Medicaid expenditures if the children are Medicaid recipients. The child support enforcement agency administering the court or administrative order shall amend the amount of monthly child support obligation to reflect the amount paid when private health insurance is not provided, as calculated in the current order pursuant to section 3119.022 or 3119.023 of the Revised Code, as applicable.

The child support enforcement agency shall give the obligor notice in accordance with Chapter 3121. of the Revised Code and provide the obligor an opportunity to be heard if the obligor believes there is a mistake of fact regarding the availability of private health insurance at a reasonable cost as determined under division (B) of this section.

2. The following notices shall apply:

EACH PARTY TO THIS SUPPORT ORDER MUST NOTIFY THE CHILD SUPPORT ENFORCEMENT AGENCY IN WRITING OF HIS OR HER CURRENT

MAILING ADDRESS, CURRENT RESIDENCE ADDRESS, CURRENT RESIDENCE TELEPHONE NUMBER, CURRENT DRIVER'S LICENSE NUMBER, AND OF ANY CHANGES IN THAT INFORMATION. EACH PARTY MUST NOTIFY THE AGENCY OF ALL CHANGES UNTIL FURTHER NOTICE FROM THE COURT OR AGENCY, WHICHEVER ISSUED THE SUPPORT ORDER. IF YOU ARE THE OBLIGOR UNDER A CHILD SUPPORT ORDER AND YOU FAIL TO MAKE THE REQUIRED NOTIFICATIONS, YOU MAY BE FINED UP TO \$50 FOR A FIRST OFFENSE, \$100 FOR A SECOND OFFENSE, AND \$500 FOR EACH SUBSEQUENT OFFENSE. IF YOU ARE AN OBLIGOR OR OBLIGEE UNDER ANY SUPPORT ORDER ISSUED BY A COURT AND YOU WILLFULLY FAIL TO GIVE THE REQUIRED NOTICES, YOU MAY BE FOUND IN CONTEMPT OF COURT AND BE SUBJECTED TO FINES UP TO \$1000 AND IMPRISONMENT FOR NOT MORE THAN 90 DAYS.

IF YOU ARE AN OBLIGOR AND YOU FAIL TO GIVE THE REQUIRED NOTICES, YOU MAY NOT RECEIVE NOTICE OF THE FOLLOWING ENFORCEMENT ACTIONS AGAINST YOU: IMPOSITION OF LIENS AGAINST YOUR PROPERTY; LOSS OF YOUR PROFESSIONAL OR OCCUPATIONAL LICENSE, DRIVER'S LICENSE, OR RECREATIONAL LICENSE; WITHHOLDING FROM YOUR INCOME; ACCESS RESTRICTION AND DEDUCTION FROM YOUR ACCOUNTS IN FINANCIAL INSTITUTIONS; AND ANY OTHER ACTION PERMITTED BY LAW TO OBTAIN MONEY FROM YOU TO SATISFY YOUR SUPPORT OBLIGATION.

The residential parent or the person who otherwise has custody of a child for whom a support order is issued is also ordered to immediately notify, and the obligor under a support order may notify, the Franklin County Child Support Enforcement Agency of any reason for which the support order should terminate, including but not limited to, the child's attainment of the age of majority if the child no longer attends an accredited high school on a full-time basis and the child support order requires support to continue past the age of majority only if the child continuously attends such a high school after attaining that age; the child ceasing to attend an accredited high school on a full-time basis after attaining the age of majority, if the child support order requires support to continue past the age of majority only if the child continuously attends such a high school after attaining that age; or the death, marriage, emancipation, enlistment in the armed services, deportation, or change of legal custody of the child.

All support under this order shall be withheld or deducted from the income or assets of the obligor pursuant to a withholding or deduction notice or appropriate order issued in accordance with chapters 3119., 3121., 3123., and 3125. of the Revised Code or a withdrawal directive issued pursuant to sections 3123.24 to 3123.38 of the Revised Code and shall be forwarded to the obligee in accordance with chapters 3119., 3121., 3123., and 3125. of the Revised Code.

Regardless of the frequency or amount of support payments to be made under the order, the Franklin County Child Support Enforcement Agency shall administer it on a monthly basis in accordance with sections 3121.51 to 3121.54 of the Revised Code.

Payments under the order are to be made in a manner ordered by the court or agency, and if the payments are to be made other than on a monthly basis, the required monthly administration by the agency does not affect the frequency or the amount of the support payments to be made under the order.

3. Plaintiff shall liquidate his child support arrears at the rate of \$20.00, plus processing, per month pursuant to statute. Franklin County Child Support Enforcement Agency shall do an audit consistent with this order to determine the actual child support arrears as of the date of this Decision.
4. Plaintiff indicates he is not currently working although he agreed to the worksheet (ex 1) as an appropriate designation of his earning capacity. A Seek Work Order shall issue.
5. Plaintiff shall claim Ivan N. Evans, born July 3, 2007 as a dependency exemption for federal, state, and local taxes every year. Defendant shall claim Isaiah D. Evans born February 17, 2006 as a dependency exemption for federal state, and local taxes every year. The parties shall alternate the exemption for the minor child Imonee D. Evans, born October 24, 2003 beginning with Mother for tax year 2015.
6. Plaintiff Father shall be allowed to take the tax exemption as outlined above as long as he is substantially compliant with his child support obligation. For the purposes of this Decision, substantial compliance means Father has paid his child support order, with the arrears payment, 10 of the last 12 months.
7. Costs to be divided equally by the parties.
8. Unless noted otherwise, this decision is effective upon approval by the Court.